

SOLVED PRACTICE WORKBOOK

Special Provisions Relating to Certain Classes - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Special Provisions Relating to Certain Classes - Solved Practice Workbook

Standalone scope: 32 original MCQs before PYQs, two verified objective PYQs, two supporting Mains PYQs with answer withholding, and exactly six original Mains model answers.

PRACTICE WORKBOOK OVERVIEW

Attempt the objective section before reading explanations. For Mains, first write the exact Article, authority and legal effect; then add the controlling amendment or judgment and one qualification.

Practice contract: Exactly 32 original MCQs follow before the PYQs. Correct answers rotate A -> B -> C -> D eight times. Every option has a question-specific explanation and every question has one unique examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1

Which statement best captures Part XVI?

A. It separates representation, service claims, oversight and class identification. B. It is the exclusive source of all educational and employment quotas. C. It places Fifth and Sixth Schedule administration under the NCSC. D. It makes constitutional-list entry an automatic entitlement to every benefit.

Answer: A.

Option-specific explanations:

- **A - Correct:** Articles 330-342A use four distinct legal techniques. [MCQ 1, option A: It separates representation, service claims, oversight and class identification.]
- **B - Incorrect:** educational and service reservation principally uses Articles 15 and 16 plus valid law. [MCQ 1, option B: It is the exclusive source of all educational and employment quotas.]
- **C - Incorrect:** Scheduled Area administration has separate constitutional and statutory owners. [MCQ 1, option C: It places Fifth and Sixth Schedule administration under the NCSC.]
- **D - Incorrect:** list status identifies a class; each benefit requires separate authority. [MCQ 1, option D: It makes constitutional-list entry an automatic entitlement to every benefit.]

Examiner trap 1: A list, a seat, a service claim and a commission report are not synonyms.

MCQ 2

What is the electoral effect of Articles 330 and 332?

A. Only SC/ST electors may vote in the reserved constituency. B. The eligible candidate is protected while ordinary constituency electors vote. C. They reserve seats in Rajya Sabha and Legislative Councils. D. They authorise State cabinets to alter SC/ST lists.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** the territorial electoral roll remains common. [MCQ 2, option A: Only SC/ST electors may vote in the reserved constituency.]
- **B - Correct:** this is reserved candidacy within the common electorate. [MCQ 2, option B: The eligible candidate is protected while ordinary constituency electors vote.]
- **C - Incorrect:** the Articles concern Lok Sabha and State Legislative Assemblies. [MCQ 2, option C: They reserve seats in Rajya Sabha and Legislative Councils.]
- **D - Incorrect:** list alteration is governed by Articles 341 and 342. [MCQ 2, option D: They authorise State cabinets to alter SC/ST lists.]

Examiner trap 2: Reserved constituency does not mean separate electorate.

MCQ 3

Under Article 330, the special rule for STs in Assam autonomous districts is that

A. their reserved seats may be below their State population proportion. B. their seats are nominated rather than elected. C. their reserved-seat proportion cannot be less than their population share in the State. D. Parliament may replace their electorate with an autonomous-district roll.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** clause (3) creates a minimum, not permission to fall below it. [MCQ 3, option A: their reserved seats may be below their State population proportion.]
- **B - Incorrect:** Article 330 concerns elected Lok Sabha seats. [MCQ 3, option B: their seats are nominated rather than elected.]
- **C - Correct:** Article 330(3) supplies the minimum proportional safeguard. [MCQ 3, option C: their reserved-seat proportion cannot be less than their population share in the State.]
- **D - Incorrect:** the ordinary electoral framework remains. [MCQ 3, option D: Parliament may replace their electorate with an autonomous-district roll.]

Examiner trap 3: Do not flatten Article 330's Assam autonomous-district safeguard into the general formula.

MCQ 4

Which Article 332 proposition is accurate?

A. It creates identical rules for every State without exceptions. B. It reserves State Legislative Council seats for STs. C. It permits constituencies for Assam autonomous districts to include outside areas freely. D. It contains special minimum-representation rules for specified North-Eastern States.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** clauses (2)-(6) contain specific Assam and North-East safeguards. [MCQ 4, option A: It creates identical rules for every State without exceptions.]
- **B - Incorrect:** Article 332 applies to Legislative Assemblies. [MCQ 4, option B: It reserves State Legislative Council seats for STs.]
- **C - Incorrect:** clause (5) protects district territorial integrity. [MCQ 4, option C: It permits constituencies for Assam autonomous districts to include outside areas freely.]
- **D - Correct:** clauses (3A)/(3B) cover Arunachal Pradesh, Meghalaya, Mizoram, Nagaland and Tripura. [MCQ 4, option D: It contains special minimum-representation rules for specified North-Eastern States.]

Examiner trap 4: North-East exceptions must be identified by clause, not generalised to all States.

MCQ 5

For Articles 330 and 332, 'population' presently refers to

A. 2001 Census figures until relevant first post-2026 census figures are published. B. 2011 Census figures merely because they are the latest completed figures. C. 1971 Census figures for every reserved-seat calculation. D. any estimate notified by the Election Commission.

Answer: A.

Option-specific explanations:

- **A - Correct:** the shared Explanation expressly fixes that interim reference. [MCQ 5, option A: 2001 Census figures until relevant first post-2026 census figures are published.]
- **B - Incorrect:** the constitutional proviso specifically names 2001. [MCQ 5, option B: 2011 Census figures merely because they are the latest completed figures.]
- **C - Incorrect:** 1971 relates to a different total-seat freeze history, not this Explanation. [MCQ 5, option C: 1971 Census figures for every reserved-seat calculation.]

- **D - Incorrect:** the Constitution requires published census figures. [MCQ 5, option D: any estimate notified by the Election Commission.]

Examiner trap 5: Latest available demographic data is not automatically the constitutional reference.

MCQ 6

Article 330A reserves

A. one-third of Rajya Sabha seats for women. B. about one-third of directly elected Lok Sabha seats, including about one-third within Article 330 seats. C. one-third of only unreserved Lok Sabha seats. D. exactly half of every State's Lok Sabha seats.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** Rajya Sabha is outside Article 330A. [MCQ 6, option A: one-third of Rajya Sabha seats for women.]
- **B - Correct:** clauses (2)-(3) create both nested and overall design. [MCQ 6, option B: about one-third of directly elected Lok Sabha seats, including about one-third within Article 330 seats.]
- **C - Incorrect:** the overall count includes women within SC/ST reserved seats. [MCQ 6, option C: one-third of only unreserved Lok Sabha seats.]
- **D - Incorrect:** the text uses 'as nearly as may be' one-third. [MCQ 6, option D: exactly half of every State's Lok Sabha seats.]

Examiner trap 6: The SC/ST-women component is nested within, not additional to, the overall one-third.

MCQ 7

Article 332A applies to

A. State Legislative Councils only. B. Parliament and Panchayats together. C. every State Legislative Assembly, with the one-third and SC/ST-within-quota design. D. only Assemblies that pass a State ratification resolution.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** the Article concerns Legislative Assemblies. [MCQ 7, option A: State Legislative Councils only.]
- **B - Incorrect:** Parliament and local bodies have separate provisions. [MCQ 7, option B: Parliament and Panchayats together.]
- **C - Correct:** clauses (1)-(3) mirror the Assembly architecture. [MCQ 7, option C: every State Legislative Assembly, with the one-third and SC/ST-within-quota design.]
- **D - Incorrect:** Article 332A is constitutional text, subject to Article 334A activation. [MCQ 7, option D: only Assemblies that pass a State ratification resolution.]

Examiner trap 7: Do not move Article 332A into bicameral Councils or local bodies.

MCQ 8

What is the first current-status gate already completed for the 106th Amendment?

A. Publication of relevant Census 2027 population figures. B. Purpose-specific delimitation under Article 334A. C. Electoral use in the Eighteenth Lok Sabha. D. Gazette commencement on 16 April 2026 through S.O. 1922(E).

Answer: D.

Option-specific explanations:

- **A - Incorrect:** those relevant figures have not yet been published. [MCQ 8, option A: Publication of relevant Census 2027 population figures.]
- **B - Incorrect:** that exercise has not been completed. [MCQ 8, option B: Purpose-specific delimitation under Article 334A.]
- **C - Incorrect:** commencement did not itself activate reserved constituencies. [MCQ 8, option C: Electoral use in the Eighteenth Lok Sabha.]

- **D - Correct:** the Central Government appointed that date under section 1(2). [MCQ 8, option D: Gazette commencement on 16 April 2026 through S.O. 1922(E).]

Examiner trap 8: Commencement is completed; electoral operation is not.

MCQ 9

Under Article 334A, women's reservation first takes electoral effect after

A. published first-post-commencement census figures followed by delimitation for this purpose. B. Presidential assent alone. C. an Election Commission press note without delimitation. D. every State separately ratifies the 106th Amendment.

Answer: A.

Option-specific explanations:

- **A - Correct:** Article 334A(1) requires both sequential steps. [MCQ 9, option A: published first-post-commencement census figures followed by delimitation for this purpose.]
- **B - Incorrect:** assent/enactment preceded a separate commencement and activation chain. [MCQ 9, option B: Presidential assent alone.]
- **C - Incorrect:** an administrative announcement cannot replace the constitutional trigger. [MCQ 9, option C: an Election Commission press note without delimitation.]
- **D - Incorrect:** State ratification is not the operational trigger stated in Article 334A. [MCQ 9, option D: every State separately ratifies the 106th Amendment.]

Examiner trap 9: Census publication and delimitation are cumulative, not alternative, conditions.

MCQ 10

Which Article 334A duration statement is safest?

A. The fifteen years necessarily ran from Presidential assent in 2023. B. The fifteen-year period is linked to commencement of the reservation provisions, with continuation possible by parliamentary law. C. The fifteen years necessarily ran from Gazette commencement in April 2026 despite no operation. D. The reservation is permanent and cannot be continued or ended by law.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** clause (1) links the period to commencement of the reservation provisions. [MCQ 10, option A: The fifteen years necessarily ran from Presidential assent in 2023.]
- **B - Correct:** clauses (1)-(2) must be read together. [MCQ 10, option B: The fifteen-year period is linked to commencement of the reservation provisions, with continuation possible by parliamentary law.]
- **C - Incorrect:** that collapses Act commencement and commencement of reservation under clause (1). [MCQ 10, option C: The fifteen years necessarily ran from Gazette commencement in April 2026 despite no operation.]
- **D - Incorrect:** Article 334A expressly provides a time rule and parliamentary continuation route. [MCQ 10, option D: The reservation is permanent and cannot be continued or ended by law.]

Examiner trap 10: Do not start the fifteen-year electoral clock from a guessed event.

MCQ 11

How does rotation work under Article 334A(3)?

A. At every general election automatically. B. By executive order whenever the Union chooses. C. After each subsequent delimitation as Parliament may determine by law. D. Once only, at the first commencement notification.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** rotation is not tied automatically to each election. [MCQ 11, option A: At every general election automatically.]

- **B - Incorrect:** the clause requires the parliamentary-law framework. [MCQ 11, option B: By executive order whenever the Union chooses.]
- **C - Correct:** this is the exact rotation mechanism. [MCQ 11, option C: After each subsequent delimitation as Parliament may determine by law.]
- **D - Incorrect:** the text refers to each subsequent delimitation. [MCQ 11, option D: Once only, at the first commencement notification.]

Examiner trap 11: Rotation follows subsequent delimitation under law, not every election cycle.

MCQ 12

What is the present position of Article 331?

A. It currently guarantees two nominated members in every Lok Sabha. B. It was replaced by Article 330A. C. It authorises the Speaker to nominate Anglo-Indians. D. Its nomination power ceased through Article 334(b)'s seventy-year clock, although the text remains.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** the nomination period was not extended by the 104th Amendment. [MCQ 12, option A: It currently guarantees two nominated members in every Lok Sabha.]
- **B - Incorrect:** women's reservation did not textually replace Article 331. [MCQ 12, option B: It was replaced by Article 330A.]
- **C - Incorrect:** the original power belongs to the President. [MCQ 12, option C: It authorises the Speaker to nominate Anglo-Indians.]
- **D - Correct:** operation ended after 25 January 2020. [MCQ 12, option D: Its nomination power ceased through Article 334(b)'s seventy-year clock, although the text remains.]

Examiner trap 12: Operational expiry is not textual omission.

MCQ 13

Article 333 originally/currently printed authorises

A. the Governor to nominate one Anglo-Indian if representation is needed and inadequate, subject now to Article 334 expiry. B. the President to nominate two members to every Assembly. C. the Election Commission to reserve an Assembly constituency. D. a State cabinet to continue nomination beyond Article 334.

Answer: A.

Option-specific explanations:

- **A - Correct:** that states both the text and operative limit. [MCQ 13, option A: the Governor to nominate one Anglo-Indian if representation is needed and inadequate, subject now to Article 334 expiry.]
- **B - Incorrect:** Article 333 names the Governor and one member. [MCQ 13, option B: the President to nominate two members to every Assembly.]
- **C - Incorrect:** nomination and constituency reservation are different mechanisms. [MCQ 13, option C: the Election Commission to reserve an Assembly constituency.]
- **D - Incorrect:** State executive action cannot override the constitutional time clause. [MCQ 13, option D: a State cabinet to continue nomination beyond Article 334.]

Examiner trap 13: Remember President/up to two under 331; Governor/one under 333.

MCQ 14

The 104th Amendment changed Article 334 by

A. extending both SC/ST seats and Anglo-Indian nomination to eighty years. B. using eighty years for SC/ST seats and seventy years for Anglo-Indian nomination. C. permanently entrenching SC/ST reserved seats. D. deleting Articles 331, 333, 336 and 337.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** clause (b) remained at seventy years. [MCQ 14, option A: extending both SC/ST seats and Anglo-Indian nomination to eighty years.]
- **B - Correct:** separate clocks are the central change. [MCQ 14, option B: using eighty years for SC/ST seats and seventy years for Anglo-Indian nomination.]
- **C - Incorrect:** the provision remains time-framed. [MCQ 14, option C: permanently entrenching SC/ST reserved seats.]
- **D - Incorrect:** it amended Article 334 rather than deleting all those provisions. [MCQ 14, option D: deleting Articles 331, 333, 336 and 337.]

Examiner trap 14: The 104th Amendment created two clocks, not one blanket extension.

MCQ 15

Article 336 did which of the following?

A. Created a permanent Anglo-Indian quota in all public services. B. Applied to State police and judicial services only. C. Continued specified Union-service arrangements, reduced reserved posts biennially and ended after ten years. D. Ended all merit appointment of Anglo-Indians.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** it was limited, diminishing and ten-year transitional. [MCQ 15, option A: Created a permanent Anglo-Indian quota in all public services.]
- **B - Incorrect:** it named railway, customs, postal and telegraph Union services. [MCQ 15, option B: Applied to State police and judicial services only.]
- **C - Correct:** that is the full transition design. [MCQ 15, option C: Continued specified Union-service arrangements, reduced reserved posts biennially and ended after ten years.]
- **D - Incorrect:** clause (2) expressly preserved merit appointment. [MCQ 15, option D: Ended all merit appointment of Anglo-Indians.]

Examiner trap 15: Article 336 combined gradual reduction with continuing merit eligibility.

MCQ 16

Article 337 required an aided institution to make at least what share of annual admissions available to communities other than Anglo-Indians?

A. Ten per cent. B. One-third. C. Fifty per cent. D. Forty per cent.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** ten per cent was the periodic possible grant reduction. [MCQ 16, option A: Ten per cent.]
- **B - Incorrect:** that fraction belongs to the later women's-reservation design. [MCQ 16, option B: One-third.]
- **C - Incorrect:** Article 337 specifies forty per cent. [MCQ 16, option C: Fifty per cent.]
- **D - Correct:** the second proviso states the threshold. [MCQ 16, option D: Forty per cent.]

Examiner trap 16: Do not confuse the forty-per-cent admissions condition with the ten-per-cent grant diminution.

MCQ 17

Article 335 directly provides that

A. SC/ST claims are considered in public appointments consistently with administrative efficiency. B. all reservations must remain below fifty per cent. C. OBC and EWS quotas must be identical. D. efficiency of administration is exhaustively defined.

Answer: A.

Option-specific explanations:

- **A - Correct:** this is the main textual command. [MCQ 17, option A: SC/ST claims are considered in public appointments consistently with administrative efficiency.]
- **B - Incorrect:** the fifty-per-cent doctrine arises elsewhere. [MCQ 17, option B: all reservations must remain below fifty per cent.]
- **C - Incorrect:** Article 335 does not create either category's quota. [MCQ 17, option C: OBC and EWS quotas must be identical.]
- **D - Incorrect:** the Article mentions but does not define efficiency. [MCQ 17, option D: efficiency of administration is exhaustively defined.]

Examiner trap 17: Article 335 is a consideration rule, not a complete reservation code.

MCQ 18

The 82nd Amendment proviso to Article 335 concerns

A. Lok Sabha delimitation. B. relaxation of qualifying marks or evaluation standards for SC/ST promotion reservation. C. creation of the NCBC. D. economic criteria for EWS.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** it concerns services and promotion reservation. [MCQ 18, option A: Lok Sabha delimitation.]
- **B - Correct:** this is the proviso's confined enabling field. [MCQ 18, option B: relaxation of qualifying marks or evaluation standards for SC/ST promotion reservation.]
- **C - Incorrect:** that was the 102nd Amendment. [MCQ 18, option C: creation of the NCBC.]
- **D - Incorrect:** EWS comes from Articles 15(6)/16(6). [MCQ 18, option D: economic criteria for EWS.]

Examiner trap 18: The proviso is promotion-related; it is not a general power to lower every standard.

MCQ 19

Article 338(10) presently means that references to Scheduled Castes in Article 338 include

A. all socially and educationally backward classes. B. every religious minority. C. the Anglo-Indian community. D. economically weaker sections.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** NCBC now has Article 338B. [MCQ 19, option A: all socially and educationally backward classes.]
- **B - Incorrect:** the clause does not create a general minority mandate. [MCQ 19, option B: every religious minority.]
- **C - Correct:** clause (10) preserves this specific inclusion. [MCQ 19, option C: the Anglo-Indian community.]
- **D - Incorrect:** EWS is not inserted into Article 338(10). [MCQ 19, option D: economically weaker sections.]

Examiner trap 19: Article 338's Anglo-Indian cross-reference survives the nomination expiry.

MCQ 20

Civil-court powers of the commissions mean that

A. their reports automatically bind Parliament. B. they can add communities to constitutional lists. C. they may invalidate statutes finally. D. they may summon evidence during investigation but do not become courts issuing binding decrees.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** reporting and legislative law-making remain distinct. [MCQ 20, option A: their reports automatically bind Parliament.]
- **B - Incorrect:** formal list alteration follows the relevant constitutional process. [MCQ 20, option B: they can add communities to constitutional lists.]
- **C - Incorrect:** final constitutional adjudication belongs to courts. [MCQ 20, option C: they may invalidate statutes finally.]
- **D - Correct:** the powers are functional and inquiry-specific. [MCQ 20, option D: they may summon evidence during investigation but do not become courts issuing binding decrees.]

Examiner trap 20: Investigative powers do not transform advisory conclusions into judgments.

MCQ 21

Article 339(2) authorises

A. Union directions to a State concerning schemes essential for ST welfare. B. States to amend the ST list. C. the NCST to legislate welfare schemes. D. automatic grants without parliamentary appropriation.

Answer: A.

Option-specific explanations:

- **A - Correct:** this is the executive-supervision limb. [MCQ 21, option A: Union directions to a State concerning schemes essential for ST welfare.]
- **B - Incorrect:** Article 342 controls the list. [MCQ 21, option B: States to amend the ST list.]
- **C - Incorrect:** the Commission advises and reports; it does not legislate. [MCQ 21, option C: the NCST to legislate welfare schemes.]
- **D - Incorrect:** Article 339 is not a self-executing fiscal appropriation. [MCQ 21, option D: automatic grants without parliamentary appropriation.]

Examiner trap 21: Article 339 direction power is supervisory, not classificatory or appropriative.

MCQ 22

An Article 340 commission is best described as

A. the permanent NCBC. B. a presidential investigative commission on SEBC conditions, difficulties and remedies. C. a court deciding backward-class status finally. D. a State-list legislature.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** NCBC is established under Article 338B. [MCQ 22, option A: the permanent NCBC.]
- **B - Correct:** its report and action memorandum go to Parliament. [MCQ 22, option B: a presidential investigative commission on SEBC conditions, difficulties and remedies.]
- **C - Incorrect:** it investigates and recommends. [MCQ 22, option C: a court deciding backward-class status finally.]
- **D - Incorrect:** State/UT lists under Article 342A(3) require law by the competent legislature. [MCQ 22, option D: a State-list legislature.]

Examiner trap 22: Kalelkar/Mandal are Article 340 examples, not names for the permanent NCBC.

MCQ 23

Under Article 341, initial SC specification is made by

A. the State cabinet by executive order. B. the NCSC through a binding report. C. the President by public notification, after Governor consultation where a State is concerned. D. the Supreme Court by issuing a fresh caste schedule.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** a State cannot independently specify the constitutional list. [MCQ 23, option A: the State cabinet by executive order.]
- **B - Incorrect:** the Commission's report does not itself amend the list. [MCQ 23, option B: the NCSC through a binding report.]
- **C - Correct:** clause (1) establishes that process. [MCQ 23, option C: the President by public notification, after Governor consultation where a State is concerned.]
- **D - Incorrect:** adjudication cannot substitute the clause (1)/(2) process. [MCQ 23, option D: the Supreme Court by issuing a fresh caste schedule.]

Examiner trap 23: State consultation is not State list-alteration power.

MCQ 24

Who may include or exclude a community from an Article 342 ST list?

A. The Governor by notification. B. The NCST after inquiry. C. A State legislature by simple resolution. D. Parliament by law.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** the Governor is consulted at the initial State specification stage. [MCQ 24, option A: The Governor by notification.]
- **B - Incorrect:** NCST may recommend but cannot formally vary the list. [MCQ 24, option B: The NCST after inquiry.]
- **C - Incorrect:** State action cannot replace parliamentary law under Article 342(2). [MCQ 24, option C: A State legislature by simple resolution.]
- **D - Correct:** Article 342(2) reserves formal variation to Parliament. [MCQ 24, option D: Parliament by law.]

Examiner trap 24: The same President-then-Parliament architecture governs Articles 341 and 342.

MCQ 25

The 102nd Amendment inserted

A. Article 338B, original Article 342A and Article 366(26C). B. Articles 15(6) and 16(6) only. C. Article 330A and Article 334A. D. the Article 335 promotion-relaxation proviso.

Answer: A.

Option-specific explanations:

- **A - Correct:** this constitutionalised the NCBC/list architecture. [MCQ 25, option A: Article 338B, original Article 342A and Article 366(26C).]
- **B - Incorrect:** those provisions came through the 103rd Amendment. [MCQ 25, option B: Articles 15(6) and 16(6) only.]
- **C - Incorrect:** those came through the 106th Amendment. [MCQ 25, option C: Article 330A and Article 334A.]
- **D - Incorrect:** that was the 82nd Amendment. [MCQ 25, option D: the Article 335 promotion-relaxation proviso.]

Examiner trap 25: Do not transpose the 102nd, 103rd and 106th Amendments.

MCQ 26

What did the majority hold in Jaishri Laxmanrao Patil (2021) on the pre-105th Article 342A text?

A. States retained an express independent list power in clause (3). B. States lacked independent identification power and could make recommendations under the then text. C. Article 342A had no effect on State identification. D. The Central List was abolished.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** clause (3) was added later by the 105th Amendment. [MCQ 26, option A: States retained an express independent list power in clause (3).]
- **B - Correct:** this was the federal-list majority holding. [MCQ 26, option B: States lacked independent identification power and could make recommendations under the then text.]
- **C - Incorrect:** the majority found displacement of State identification power. [MCQ 26, option C: Article 342A had no effect on State identification.]
- **D - Incorrect:** the case did not abolish the Central List. [MCQ 26, option D: The Central List was abolished.]

Examiner trap 26: Keep Jaishri's Article 342A holding separate from its fifty-per-cent ceiling holding.

MCQ 27

After the 105th Amendment, Article 342A(1)-(2) governs

A. State SC lists. B. all EWS beneficiaries. C. the Central List for Central Government purposes. D. Panchayat reserved seats.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Scheduled Castes remain governed by Article 341. [MCQ 27, option A: State SC lists.]
- **B - Incorrect:** EWS uses Articles 15(6)/16(6). [MCQ 27, option B: all EWS beneficiaries.]
- **C - Correct:** President specifies and Parliament varies it. [MCQ 27, option C: the Central List for Central Government purposes.]
- **D - Incorrect:** Article 243D governs that field. [MCQ 27, option D: Panchayat reserved seats.]

Examiner trap 27: Central-purpose SEBC identification is not a universal all-government list.

MCQ 28

Article 342A(3) permits

A. a State executive circular to alter the Central List. B. States to delete communities from Article 341. C. the NCBC to enact a list directly. D. a State or Union territory to maintain its own-purpose SEBC list by law, even if entries differ.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** clause (3) requires an own-purpose list by law. [MCQ 28, option A: a State executive circular to alter the Central List.]
- **B - Incorrect:** Article 341 list alteration remains with Parliament. [MCQ 28, option B: States to delete communities from Article 341.]
- **C - Incorrect:** NCBC is an advisory/monitoring commission. [MCQ 28, option C: the NCBC to enact a list directly.]
- **D - Correct:** this is the restored federal power. [MCQ 28, option D: a State or Union territory to maintain its own-purpose SEBC list by law, even if entries differ.]

Examiner trap 28: State-list difference is permitted, but the legal form 'by law' is mandatory.

MCQ 29

EWS reservation derives constitutionally from

A. Articles 15(6) and 16(6), inserted by the 103rd Amendment. B. Article 335. C. Article 342A. D. Articles 330A and 332A.

Answer: A.

Option-specific explanations:

- **A - Correct:** Janhit Abhiyan upheld this separate route by 3:2. [MCQ 29, option A: Articles 15(6) and 16(6), inserted by the 103rd Amendment.]
- **B - Incorrect:** Article 335 addresses SC/ST service claims. [MCQ 29, option B: Article 335.]
- **C - Incorrect:** Article 342A concerns SEBC lists. [MCQ 29, option C: Article 342A.]
- **D - Incorrect:** those concern women's legislative seats. [MCQ 29, option D: Articles 330A and 332A.]

Examiner trap 29: Economic weakness and social/educational backward-class listing use different constitutional routes.

MCQ 30

E.V. Chinnaiah (2004) held that

A. State sub-classification of the notified SC list was permissible without limit. B. the notified SCs formed an indivisible class for State sub-classification. C. States could amend the Presidential list. D. SC sub-classification was mandatory.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** it imposed the categorical bar later overruled. [MCQ 30, option A: State sub-classification of the notified SC list was permissible without limit.]
- **B - Correct:** Davinder Singh later overruled this holding. [MCQ 30, option B: the notified SCs formed an indivisible class for State sub-classification.]
- **C - Incorrect:** Article 341 list alteration remained parliamentary. [MCQ 30, option C: States could amend the Presidential list.]
- **D - Incorrect:** the case prohibited rather than mandated it. [MCQ 30, option D: SC sub-classification was mandatory.]

Examiner trap 30: Chinnaiah is the old bar, not the current permission.

MCQ 31

Which is the safest Davinder Singh (2024) proposition?

A. States may add and delete Scheduled Castes. B. Every State must immediately adopt one national sub-quota model. C. States may use rational, evidence-based SC sub-classification for benefit distribution without altering Article 341. D. A preferred subgroup may receive every SC-reserved seat.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Article 341 formal list power did not move. [MCQ 31, option A: States may add and delete Scheduled Castes.]
- **B - Incorrect:** the judgment is enabling and policy remains reviewable. [MCQ 31, option B: Every State must immediately adopt one national sub-quota model.]
- **C - Correct:** the 6:1 ruling overruled Chinnaiah on this point. [MCQ 31, option C: States may use rational, evidence-based SC sub-classification for benefit distribution without altering Article 341.]
- **D - Incorrect:** exclusive benefit over all seats for the class violates the stated limit. [MCQ 31, option D: A preferred subgroup may receive every SC-reserved seat.]

Examiner trap 31: Distribution within the list is permissible; rewriting or monopolising the list is not.

MCQ 32

Which matching is accurate?

A. Article 334-Panchayats; Article 275-SC/ST list alteration. B. Article 243D-Lok Sabha; Article 243T-State Assemblies. C. Article 275-NCBC; Fifth Schedule-EWS. D. Articles 243D/243T-local bodies; Article 275-ST welfare/Scheduled Area grants.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** both matches assign the wrong legal effect. [MCQ 32, option A: Article 334-Panchayats; Article 275-SC/ST list alteration.]
- **B - Incorrect:** these Articles govern Panchayats and Municipalities. [MCQ 32, option B: Article 243D-Lok Sabha; Article 243T-State Assemblies.]
- **C - Incorrect:** Article 275 is fiscal and the Fifth Schedule is territorial. [MCQ 32, option C: Article 275-NCBC; Fifth Schedule-EWS.]
- **D - Correct:** neither provision alters a constitutional list. [MCQ 32, option D: Articles 243D/243T-local bodies; Article 275-ST welfare/Scheduled Area grants.]

Examiner trap 32: Local representation, fiscal support and class identification must remain separate.

PYQS AND ANSWER PRACTICE

Verified objective PYQ 1 - UPSC Prelims 2023, GS Paper I, Question 40

Question: Consider the following statements:

Statement-I: The Supreme Court of India has held in some judgements that the reservation policies made under Article 16(4) of the Constitution of India would be limited by Article 335 for maintenance of efficiency of administration.

Statement-II: Article 335 of the Constitution of India defines the term 'efficiency of administration'.

Which one of the following is correct?

A. Both statements are correct and Statement-II explains Statement-I. B. Both statements are correct but Statement-II does not explain Statement-I. C. Statement-I is correct but Statement-II is incorrect. D. Statement-I is incorrect but Statement-II is correct.

Final official/local key: C.

Solution: The official key treats Statement-I as correct. Statement-II is textually wrong: Article 335 mentions but does not define efficiency. For a current Mains answer, add the later qualification from *Davinder Singh* (2024), which frames Article 335 as a restatement of the need to consider SC/ST claims and understands efficiency through inclusion.

Verified objective PYQ 2 - UPSC Prelims 2024, GS Paper I, Question 81

Question: Consider the following statements regarding 'Nari Shakti Vandan Adhiniyam':

1. Provisions will come into effect from the 18th Lok Sabha.
2. This will be in force for 15 years after becoming an Act.
3. There are provisions for reservation of seats for Scheduled Castes women within the quota reserved for Scheduled Castes.

Which statements are correct?

Which statements are correct?

A. 1, 2 and 3 B. 1 and 2 only C. 2 and 3 only D. 1 and 3 only

Final official/local key: C.

Solution: Statement 1 fails because Article 334A requires the census-publication-delimitation chain rather than automatic Eighteenth Lok Sabha operation. The official key accepted Statements 2 and 3. Current-law precision additionally requires noting S.O. 1922(E), 16 April 2026 commencement, while electoral operation still awaits the remaining Article 334A steps.

Supporting Mains PYQ 3 - UPSC 2018, GS Paper II, 10 marks

Whether National Commission for Scheduled Castes (NCSC) can enforce the implementation of constitutional reservation for the Scheduled Castes in the religious minority institutions? Examine.

Answer withheld pending official UPSC key.

Demand route: Article 338 inquiry/reporting powers -> Article 15(5) minority-institution exclusion -> Article 30(1) -> commission accountability versus binding adjudication.

Supporting Mains PYQ 4 - UPSC 2022, GS Paper II, 10 marks

Discuss the role of the National Commission for Backward Classes in the wake of its transformation from a statutory body to a constitutional body.

Answer withheld pending official UPSC key.

Demand route: 102nd Amendment -> Article 338B functions -> advisory/reporting limits -> Jaishri (2021) -> 105th Amendment and current Central/State list split.

SIX ORIGINAL MAINS MODELS

Original Mains 1 - 10 marks, 150 words

Question: Explain why Part XVI cannot be described as a single reservation code.

Part XVI advances substantive equality through distinct constitutional techniques. Articles 330-334A protect legislative representation; Article 335 requires consideration of SC/ST claims in public services consistently with administrative efficiency; Articles 338-340 create monitoring, supervision and investigative mechanisms; and Articles 341-342A control class identification. These functions are not interchangeable. A constitutional list identifies who is recognised, while Articles 15, 16, 243D, 243T, ordinary law or policy determine the relevant educational, service or local-body benefit. Similarly, a commission may inquire and recommend but cannot amend a list or issue a binding judicial decree. Thus Part XVI is better understood as a differentiated equality architecture. Its effectiveness depends on exact institutional competence, lawful benefit design and evidence-based implementation rather than treating every safeguard as a single quota power.

[ORIGINAL MAINS 1 MODEL ANSWER WORD COUNT: 125]

Examiner note: The model follows claim -> named constitutional/case evidence -> analysis -> qualification and directly answers the directive.

Original Mains 2 - 10 marks, 150 words

Question: Distinguish Article 341 list alteration from SC sub-classification after Davinder Singh.

Article 341 answers who is a Scheduled Caste in relation to a State or Union territory. The President initially specifies the list by public notification after the required consultation, and Parliament alone may include or exclude communities by law. Sub-classification answers a different question: how a valid benefit is distributed among castes already on that list. *E.V. Chinnaiah* (2004) treated the notified class as indivisible, but *State of Punjab v Davinder Singh* (2024) overruled that bar by 6:1. A State may now differentiate under Articles 15(4) or 16(4) on a rational principle connected to substantive equality and supported by evidence, including service-representation data where relevant. However, it cannot alter the Article 341 list or give every SC-reserved seat exclusively to a preferred subgroup. The ruling enables reviewable distribution; it does not mandate one national model.

[ORIGINAL MAINS 2 MODEL ANSWER WORD COUNT: 139]

Examiner note: The model follows claim -> named constitutional/case evidence -> analysis -> qualification and directly answers the directive.

Original Mains 3 - 15 marks, 250 words

Question: Analyse the constitutional design and current operational status of women's legislative reservation.

The 106th Amendment creates women's legislative reservation through nested and staged constitutional design. Article 330A reserves, as nearly as may be, one-third of directly elected Lok Sabha seats, including one-third within SC/ST reserved seats. Article 332A applies the same structure to State Assemblies, while amended Article 239AA covers the Delhi Assembly. Rajya Sabha and Legislative Councils remain outside this design.

Implementation is deliberately separated from enactment. The Amendment was enacted in September 2023 and commenced through S.O. 1922(E) on 16 April 2026. Article 334A(1), however, postpones electoral effect until relevant figures from the first census taken after commencement are published and delimitation is undertaken for this purpose. As of 9 September 2026, the relevant figures and purpose-specific delimitation are incomplete; the reservation is therefore in force as constitutional text but not electorally operational.

Article 334A links the initial reservation period to fifteen years from commencement of the reservation provisions, allows Parliament by law to determine continuation, and makes rotation effective after each subsequent delimitation as Parliament provides. Existing Houses and Assemblies remain unaffected until dissolution.

The design promotes descriptive inclusion and an SC/ST-women guarantee, but its substantive value will depend on fair delimitation, internal party democracy and legislative agency. A sound answer must therefore distinguish assent, commencement, census publication, delimitation and actual electoral use.

[ORIGINAL MAINS 3 MODEL ANSWER WORD COUNT: 219]

Examiner note: The model follows claim -> named constitutional/case evidence -> analysis -> qualification and directly answers the directive.

Original Mains 4 - 15 marks, 250 words

Question: Discuss how the 102nd and 105th Amendments reorganised SEBC identification in the Indian federation.

The 102nd Amendment Act, 2018 transformed backward-class safeguards by inserting Article 338B for a constitutional NCBC, Article 342A for SEBC specification and Article 366(26C). It added permanence, complaint inquiry, safeguard monitoring, planning advice and parliamentary reporting. Yet the original Article 342A created a federal ambiguity over who could identify SEBCs for State purposes.

In *Jaishri Laxmanrao Patil v Chief Minister, Maharashtra* (2021), the Supreme Court majority read the pre-105th text as displacing States' independent identification power and leaving them to recommend changes. The judgment separately invalidated the Maratha reservation for breaching the ordinary fifty-per-cent ceiling without exceptional circumstances; that issue should not be collapsed into the list-power holding.

The 105th Amendment Act, 2021 supplied an express federal correction. Article 342A(1)-(2) now governs the Central List for Central Government purposes: the President specifies and Parliament includes or excludes by law. The Explanation defines that Central List. Article 342A(3) permits each State or Union territory, by law, to prepare and maintain its own-purpose list, whose entries may differ. Related changes to Article 366(26C) and Article 338B(9) align the consultation rule.

Thus India now has coordinated but distinct Central and State SEBC lists. This restores local responsiveness while requiring transparent criteria, reliable data and judicially reviewable legislation. It does not confer State power over SC/ST lists under Articles 341 and 342.

[ORIGINAL MAINS 4 MODEL ANSWER WORD COUNT: 225]

Examiner note: The model follows claim -> named constitutional/case evidence -> analysis -> qualification and directly answers the directive.

Original Mains 5 - 20 marks, 250 words

Question: Evaluate whether Part XVI successfully combines recognition, representation and redistribution.

Part XVI converts substantive equality into a constitutional architecture of recognition, representation and accountability. Articles 341, 342 and 342A identify protected classes through controlled list procedures. Articles 330 and 332 secure SC/ST presence in the Lok Sabha and State Assemblies without separate electorates. Articles 338, 338A and 338B create specialised commissions, while Articles 339 and 340 generate supervision and evidence. Article 335 connects SC/ST service claims with inclusive administrative efficiency.

The architecture has important strengths. Parliamentary control over SC/ST list alteration protects formal integrity; State/UT SEBC lists after the 105th Amendment improve federal responsiveness; action-taken memoranda expose governmental non-acceptance; and periodic Article 334 amendments keep legislative reservation democratically reviewable. The 106th Amendment also adds women's representation, including within SC/ST seats.

However, recognition does not guarantee redistribution. A list entry needs a separate benefit source, adequate budgets and competent administration. Commission recommendations are not binding. Delimitation delays can postpone political inclusion. Unequal capture within protected classes may persist, while unsupported sub-classification can reproduce political patronage.

Davinder Singh (2024) offers a calibrated response by permitting rational, evidence-based SC sub-classification while preserving Article 341 list authority and barring all-seats exclusivity. Similarly, the Central/State SEBC split requires comparable data and reasoned law.

Therefore Part XVI is normatively strong but implementation-dependent. Success requires exact source discipline, quality data, fair distribution, legislative accountability and judicial review, not merely constitutional recognition.

[ORIGINAL MAINS 5 MODEL ANSWER WORD COUNT: 230]

Examiner note: The model follows claim -> named constitutional/case evidence -> analysis -> qualification and directly answers the directive.

Original Mains 6 - 20 marks, 250 words

Question: Examine Article 335 in relation to reservation, efficiency and the wider Part XVI framework.

Article 335 is the service-claim bridge within Part XVI. It requires the claims of SC/ST members to be considered in appointments to Union and State services consistently with administrative efficiency. The 82nd Amendment proviso permits provisions relaxing qualifying marks or lowering evaluation standards for reservation in promotion. The Article neither fixes a quota nor defines efficiency.

Its operation must be read with Article 16. Articles 16(4A) and 16(4B), valid service law and controlling precedent determine the legality of promotion and carry-forward measures. *M. Nagaraj* (2006) upheld the enabling amendments subject to constitutional conditions; *Jarnail Singh* (2018) removed the requirement to prove SC/ST backwardness while retaining other controls. In *Davinder Singh* (2024), the Chief Justice's conclusions described Article 335 as a restatement of the need to consider SC/ST claims rather than a free-standing veto and understood efficiency through inclusion and equality.

Article 335 must also remain separate from identification and oversight. Articles 341-342 determine who is listed; lawful policy distributes the benefit; Articles 338-338A monitor safeguards; courts review constitutionality. OBC and EWS routes arise elsewhere.

An effective framework therefore measures efficiency by constitutional outcomes, competence and representative administration rather than exclusion alone. Yet inclusion cannot justify arbitrary standards or unsupported policy. The proper balance is evidence-based design, transparent criteria, periodic review and fidelity to the exact enabling clause.

[ORIGINAL MAINS 6 MODEL ANSWER WORD COUNT: 222]

Examiner note: The model follows claim -> named constitutional/case evidence -> analysis -> qualification and directly answers the directive.